



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 31, 2025

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202307341 (Incident Date: August 4, 2023) regarding Police Officer Keon Lawson, Tax No. 963602 (PODS Case No. C-032715)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter involving a single allegation of an improper search against Police Officer Lawson.

In this matter, Police Officer Lawson searched an individual pursuant to a pedestrian stop conducted by his partner prior to Police Officer Lawson's arrival. Before the search took place, the individual stated to the officers that he had a firearm on his person. This prompted the officers to question where the firearm was and for Police Officer Lawson to first frisk and then search the individual. Body worn camera footage corroborates that the individual stated that he had a gun and then directed the officers to look in his pockets. Although the individual's intention may have been to direct them to a pocket containing his identification, the officers were concentrating their search for the firearm, based on the admission made by the individual. Therefore, the search by Police Officer Lawson once those statements were made, was reasonable. Additionally, based on the individual's statements, the presumption was that he was carrying the firearm unlawfully, until proven otherwise.

Therefore, based on the foregoing, Police Officer Lawson will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 212-11 (Investigative Encounters/Search).

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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